IN THE UNITED STATES COAST GUARD
COURT OF CRIMINAL APPEALS

UNITED STATES, Appellee v. Justin D. STEEN Boatswain's Mate Third Class U. S. Coast Guard, Appellant	4 April 2019 APPELLANT'S ASSIGNMENT OF ERROR AND BRIEF Dkt. 1464 Case No. SP 24978 Before McClelland, Brubaker, Koshulsky Tried at Norfolk, Virginia by a special court-martial convened by Commanding Officer, USCGC FORWARD, from 5 to 9 June 2018.

TO THE HONORABLE, THE JUDGES OF THE UNITED STATES COAST GUARD COURT OF CRIMINAL APPEALS

Statement of the Case and Jurisdiction

A special court-martial, composed of members with enlisted representation, tried Boatswain's Mate Third Class (BM3) Justin D. Steen, United States Coast Guard. Contrary to his pleas, he was convicted of one specification of wrongful distribution of marijuana and one specification of wrongful introduction of marijuana onto a military installation, both in violation of Article 112a of the Uniform Code of Military Justice (UCMJ), 10 U.S.C. § 912a (2018).

On 9 June 2018, the members sentenced BM3 Steen to a reduction in pay-grade to E-1, fifteen days of confinement, and a bad-conduct discharge. (R. at Vol. IV at 149.) The convening authority approved the sentence as adjudged and, with the exception of the-bad conduct discharge, ordered it executed on 1 October 2018. (CA's Action.)

On 19 December 2018, the Judge Advocate General of the Coast Guard transmitted the case to the Coast Guard Court of Criminal Appeals (CGCCA) for review under Article 66,

Uniform Code of Military Justice (UCMJ), 10 U.S.C. § 866 (2018).

Statement of Facts

A. Background

BM3 Steen had been processed for administrative separation for a DUI that occurred while he was sitting in the driver's seat of his friend's parked car. At the time of the court-martial offense, BM3 Steen was awaiting his administrative discharge, had concluded his duties in the deck department on CGC FORWARD, and was on terminal leave packing up his household goods to move to Florida.

SA [redacted] was an E-2 under BM3 Steen's supervision during BM3 Steen's last few months on CGC FORWARD. (R. Vol. III at 9.) On 8 November 2017, local police pulled over SA [redacted] for running a stop sign. (R. Vol. III at 9-10, 44.) When he opened the window the officer smelled a powerful odor of marijuana. In a subsequent interview by CGIS about his possession and use of marijuana, SA [redacted] told the interviewing agent he bought the marijuana from BM3 Steen. As a result of this accusation, BM3 Steen was charged with single specifications of introducing marijuana to a military installation and distribution. SA [redacted] was granted testimonial immunity and the charges against him were dismissed in exchange for his testimony against BM3 Steen.

B. The defense's M.R.E. 404(b) motion.

A search of BM3 Steen's cell phone after SA [redacted] accusation identified no evidence of the alleged drug sale. It did, however, produce a series of text messages between BM3 Steen and his sister and two friends from home, discussing his interest in using marijuana in the future—after returning home from being discharged from the military.

Before trial, the defense moved to exclude the text messages under M.R.E. 404(b). The

defense motion argued that because the message exchange occurred after the alleged drug sale and involved unrelated people, the messages were not relevant to any of the permissible uses under 404(b). The defense argued, the messages were improper propensity evidence of uncharged drug-related misconduct. (App. Ex. VI at 4.)

The government responded that the messages were admissible because they "tend[ed] to show that BM3 Steen needed more marijuana after selling marijuana to SA [redacted] had he not sold marijuana to SA [redacted] he would not need more marijuana two days later." (App. Ex. VII at 7.)

The military judge granted the defense motion on the basis that the danger of unfair prejudice from admitting the messages substantially outweighed their probative value. (R. Vol. I at 32.) The military judge's ruling came with a caveat:

> At this point, I don't, I tend to agree with you that it's not relevant on its face. But if the, for example, if you [trial counsel] were going to argue in your case or through cross examination or if evidence were to come out that Petty Officer Steen doesn't know what marijuana looks like, he's never seen marijuana, he would never touch marijuana, he's, for whatever reason he's morally opposed to possessing, smoking, looking at, associating with people who have, possess, sell, or distribute marijuana, evidence like that potentially opens the door for the Government legitimately using this as rebuttal evidence to show, you know, look, within twenty-four hours of the period of charged misconduct he was reaching out to someone to get more.

(R. Vol. I at 23-24.) Thus the military judge previewed a theory of relevance for trial counsel that later resulted in reconsideration of the ruling in the government's favor. (R. Vol. I at 33.)

C. The Government's Evidence.

The government called three witnesses at trial—SA [redacted] and two CGIS agents involved in the search and seizure of BM3 Steen's cell phone.

SA [redacted] testified that during the time leading up to the alleged drug sale, he smoked

Summary of Argument

The military judge erred when he admitted the text messages under M.R.E. 404(b) because the there is no authority that allows uncharged misconduct evidence to be admitted for the "resupply" purpose claimed the government claims. The impeachment purpose also relied on was impermissible under both M.R.E. 404(b) and M.R.E. 608. The evidence admitted did not provide a reasonable basis to conclude that BM3 Steen bought marijuana after the alleged sale and even if it did, it did not serve any permissible M.R.E. 404(b) purpose.

Ultimately the military judge's ruling admitted hearsay evidence of bad acts as "rebuttal" to BM3 Steen's testimony that he did not sell marijuana to SA [redacted] (R. Vol. III at 192.) The military judge applied no facts to the seven factors disfavoring admission in his M.R.E. 403 analysis. The ruling was an abuse of discretion and prejudiced BM3 Steen by allowing propensity evidence to tip the scale in a case that otherwise hinged entirely on the incoherent testimony of a single admitted drug user and person who admitted to making false statements to law enforcement officials.

The prejudice is demonstrated by the insufficiency of the government case. It relied entirely on SA [redacted] uncorroborated testimony, which did not satisfy the beyond-a-reasonable-doubt standard and the convictions must, consequently, be set aside.

Issues Presented

I

M.R.E. 404(b) BARS THE ADMISSION OF EVIDENCE OF OTHER ACTS TO PROVE THE ACTOR HAD A PROPENSITY TO ACT SIMILARLY IN THE CIRCUMSTANCES CHARGED. THE MILITARY JUDGE ADMITTED EVIDENCE THAT BM3 STEEN SOUGHT MARIJUANA DAYS AFTER THE ALLEGED SALE. DID THE MILITARY JUDGE ERR WHEN HE ADMITTED PROPENSITY EVIDENCE UNDER THE GUISE OF AN UNFOUNDED AND UNSUPPORTED "RESUPPLY" THEORY?

II

THE GOVERNMENT RELIED ON A SINGLE WITNESS TO ESTABLISH EVERY ELEMENT OF THE OFFENSES. THAT WITNESS WAS AN ADMITTED DRUG USER, TESTIFYING PURSUANT TO A GRANT OF IMMUNITY, AND WAS IMPEACHED AT TRIAL. DID HIS TESTIMONY PROVIDE PROOF BEYOND A REASONABLE DOUBT?

Argument

I

M.R.E. 404(b) BARS THE ADMISSION OF EVIDENCE OF OTHER ACTS TO PROVE THE ACTOR HAD A PROPENSITY TO ACT SIMILARLY IN THE CIRCUMSTANCES CHARGED. THE MILITARY JUDGE ADMITTED EVIDENCE THAT BM3 STEEN SOUGHT MARIJUANA DAYS AFTER THE ALLEGED SALE. DID THE MILITARY JUDGE ERR WHEN HE ADMITTED PROPENSITY EVIDENCE UNDER THE GUISE OF AN UNFOUNDED AND UNSUPPORTED "RESUPPLY" THEORY?

Standard of review

A military judge's decision to admit evidence is reviewed for an abuse of discretion *United States v. Yammine*, 69 M.J. 70, 73 (C.A.A.F. 2010). The military judge's interpretations of the rules of evidence, on the other hand, are reviewed *de novo*. *Id.*

Analysis

The admissibility of uncharged misconduct evidence under M.R.E. 404(b) is determined under a three-prong test the CMA set out in *United States v. Reynolds.* 29 M.J. 105, 109 (C.M.A.1989). The prongs are as follows:

> 1. Does the evidence reasonably support a finding by the court members that appellant committed prior crimes, wrongs or acts?
> 2. What "fact ... of consequence" is made "more" or "less probable" by the existence of this evidence?
> 3. Is the "probative value ... substantially outweighed by the danger of unfair prejudice"?

United States v. Yammine, 69 M.J. 70, 77 (C.A.A.F. 2010). Each of the three prongs must be satisfied for evidence to be admissible under M.R.E. 404(b). *Id*.

A. The first *Reynolds* prong was not satisfied because the text messages did not establish the alleged act—buying marijuana—occurred.

permanently. The record does not indicate who this source was, but it does exclude BM3 Steen. These gaps and inconsistencies show that SA [redacted] is not a credible witness. This Court should discount his testimony and recognize that SA [redacted] testimony, without consistent, corroborating testimony, is insufficient to meet the "beyond a reasonable doubt" standard.

C. The evidence was factually insufficient because it relied solely on SA [redacted] who had a compelling motive to fabricate his testimony.

Through the course of his interactions with the Virginia Police Department, SA [redacted] learned that he could avoid criminal charges by providing law enforcement with evidence to pursue higher-priority investigations. Thus by providing the police with the contact information of a prostitute, he avoided state charges for possession of marijuana.

Once confronted by CGIS with the possession offense, he again sought to deflect interest from himself. By providing CGIS with the allegation of distribution by BM3 Steen, SA [redacted] avoided charges for use. If, consistent with the text message exchange with his girlfriend, SA [redacted] told CGIS that he bought the marijuana from a local drug dealer, he would have remained the focus of the Coast Guard investigation and prosecution. (Def. Ex. I.) On the other hand, accusing another Coast Guard member afforded him yet another opportunity to evade prosecution.

The requirement for SA [redacted] to testify "truthfully" under his grant of testimonial immunity compounds his motive to testify against BM3 Steen without providing more reason to rely on the ultimate verity of his testimony. Once SA [redacted] accused BM3 Steen in his interview with CGIS, he was committed to that account; any further change in his version of events would have exposed himself to liability for false official statements or obstruction of justice. SA [redacted] was locked into the self-serving accusation against BM3 Steen regardless of its truth, the terms of

the grant of testimonial immunity that accompanied the order requiring him to testify add little to the trustworthiness of his assertions.

When viewing the entirety of the evidence, this Court cannot be convinced beyond a reasonable doubt of BM3 Steen's guilt to the charged offenses. The Military Judge convicted BM3 Steen based on SA [redacted] testimony. Yet SA [redacted] testimony is rife with gaps and inconsistencies. His story is unreliable in light of these inconsistencies and his obvious motive to fabricate. These manifold sources of reasonable doubt that make the convictions under legally and factually insufficient.

Conclusion

The text messages to BM3 Steen's civilian sister and family while he was passing through North Carolina on terminal leave had no logical connection to the alleged drug sale. The admission of the messages based on a logical fallacy and the restyling of a propensity theory under the moniker "replenishment" was an end-run around M.R.E. 404. The military judge abused his discretion by disregarding six on-point factors in the seven-factor M.R.E. 403 balancing test to reach this result. The impact of the improper ruling was decisive in this close case and substantially prejudiced BM3 Steen's right to a fair trial. The insufficiency of the evidence underscores the prejudice and, on its own, requires this Court's intervention.